

PURCHASE AND SALE AGREEMENT

This ____ day of October, 2024

PARTIES

Theriault & Sons Realty Trust hereinafter called the SELLER or SELLERS, agrees to SELL to Alexander W. Gonzalez, hereinafter called the BUYER, BUYERS or PURCHASER, agrees to BUY, upon the terms hereinafter set forth, the following described premises:

2. DESCRIPTION

Land and buildings known and numbered as 025-44 Mohawk Trail, Florida, MA 01247, as more particularly described by a Deed dated 10/05/1978 recorded in the Northern Berkshire Registry of Deeds, in Book 688, Page 713, hereinafter referred to as the "Premises".

3. BUILDINGS, STRUCTURES, IMPROVEMENTS, FIXTURES

Included in the sale as a part of said Premises is the land with improvements now thereon. Specifically excluding Seller's personal property that may be on the land.

4. TITLE DEED

Said Premises to be conveyed by a good and sufficient Quitclaim deed running to the BUYER, or to the nominee designated by the BUYER by written notice to the SELLER at least seven days before the deed is to be delivered as herein provided, and said deed shall convey a good and clear record and marketable title thereto, free from encumbrances, except:

- (a) Provisions of existing building and zoning laws;
- (b) Existing rights and obligations in party walls which are not the subject of written Agreement.
- (c) Such taxes for the then current year as are not due and payable on the date of the delivery of such deed;
- (d) Any liens for municipal betterments assessed after the date of the Closing;
- (e) Any easement, restriction or Agreement of record presently in force and applicable which does not interfere with the present use of the Premises as a single-family residence.

5. PLANS

If said deed refers to a plan necessary to be recorded therewith the SELLER shall deliver such plan with the deed in form adequate for recording or registration.

6. REGISTERED TITLE

In addition to the foregoing, if the title to said Premises is registered, said deed shall be in form sufficient to entitle the BUYER to a Certificate of Title of said Premises, and the SELLER shall deliver with said deed all instruments, if any, necessary to enable the BUYER to obtain such Certificate of Title.

7. PURCHASE PRICE The agreed purchase price for said Premises is Twenty-Four Thousand and 00/100 (\$24,000.00) Dollars, of which
- | | |
|-------------|--|
| \$1,000.00 | Having been paid with the Offer to Purchase |
| \$ 1,200.00 | Shall be paid at the execution of this Agreement |
| \$21,800.00 | is to be paid after the deed is recorded by Attorney's MA IOLTA check or wire. |
| \$22,000.00 | TOTAL |
8. TIME FOR PERFORMANCE;
DELIVERY OF DEED. Such deed is to be delivered at 12:00 o'clock P.M. on the **15th** day of **November, 2024**, ("Closing" or "Closing Date") at the office of BUYER's attorney, unless otherwise agreed upon in writing. The parties hereby agree that the SELLER shall not be required to attend the Closing and may pre-execute and deliver all documents via Power of Attorney, provided the deed is signed personally. It is agreed that time is of the essence of this Agreement.
9. POSSESSION AND CONDITION OF PREMISES Full possession of said Premises, is to be delivered at the time of the delivery of the deed, said Premises to be then free of all personal property of the SELLER(s) not included in the sale; (a) in the same condition they were at the time of BUYER's offer to purchase if said inspection was waived, reasonable use and wear thereof excepted, (b) not in record violation of said building and zoning laws, and (c) in compliance with the provisions of any instrument referred to in clause 4 hereof and (d) BUYER(S) shall have the opportunity to walk through the Premises.
10. EXTENSIONS TO PERFECT TITLE OR MAKE PREMISES CONFORM If the SELLER shall be unable to give title or to make conveyance, or to deliver possession of the Premises, all as herein stipulated, or if at the time of the delivery of the deed the Premises do not conform with the provisions hereof, the SELLER shall use reasonable efforts to remove any defects in title, or to deliver possession as provided herein, or to make the said Premises conform to the provisions hereof, as the case may be, in which event the SELLER shall give written notice thereof to the BUYER at or before the time for performance hereunder, and thereupon the time for performance hereof shall be extended for a period of up to thirty (30) calendar days. SELLER shall not be required to expend in excess of one half of one percent of the purchase price to comply with this paragraph.
11. FAILURE TO PERFECT TITLE OR MAKE PREMISES CONFORM, etc. If at the expiration of the extended time the SELLER shall have failed so to remove any defects in title, deliver possession, or make the Premises conform, as the case may be, all as herein agreed, or if at any time during the period of this Agreement or any extension thereof, the holder of a mortgage on said Premises shall refuse to permit the insurance proceeds, if any, to be used for such purposes, then, at the BUYER's option, any payments made under this Agreement shall be forthwith refunded and all other obligations of all parties hereto shall cease and this Agreement shall be void without recourse to the parties thereto.

12. BUYER'S ELECTION TO ACCEPT TITLE
- If the SELLER shall not be able to deliver possession of and title to the Premises as herein provided, then the BUYER shall have the election at either the original or any extended time for performance to accept such title and possession as the SELLER can deliver. If the BUYER so elects, he shall pay the full sales price and, in the event the Premises shall have been damaged by fire or casualty insured against, then the SELLER shall, unless the Premises have been previously restored to their former condition, either:
- (a) pay over or assign BUYER, on delivery of the deed, all amounts recovered or recoverable on account of such insurance less any amounts reasonably expended by the SELLER for any partial restoration, or
 - (b) if a holder of a mortgage on said Premises shall not permit the insurance proceeds or a part thereof to be used to restore the said Premises to their former condition or to be so paid over or assigned, give to the BUYER a credit against the purchase price, on delivery of the deed, equal to said amounts so recovered or recoverable and retained by the holder of the said mortgage less any amounts reasonably expended by the SELLER for any partial restoration.
13. ACCEPTANCE OF DEED
- The acceptance and recording of a deed by the BUYER or his nominee as the case may be, shall constitute full performance by the SELLER and shall be deemed to discharge and release the SELLER of every agreement and obligation herein contained or expressed, except such as are, by the terms hereof, to be performed after the delivery of said deed.
14. USE OF PURCHASE MONEY TO CLEAR TITLE
- To enable the SELLER to make conveyance as herein provided, the SELLER shall, at the time of delivery of the deed, use the purchase money or any portion thereof to clear the title of any or all encumbrances or interests, in accordance with REBA title and practice standards.
15. INSURANCE
- Intentionally Omitted – Seller current does not have Insurance on property.
- All risk of loss shall remain with the SELLER until the recording of the Deed hereunder.
16. ADJUSTMENTS
- Real Estate taxes for the then current year, shall be apportioned, as of the day of performance of this Agreement and the net amount thereof shall be added to or deducted from, as the case may be, the purchase price payable by the BUYER at the time of delivery of the deed.
17. ADJUSTMENTS OF UNASSESSED AND ABATED TAXES
- If the amount of said taxes is not known at the time of the delivery of the deed, they shall be apportioned on the basis of the taxes assessed for the preceding year, with a reapportionment as soon as the new tax rate and valuation can be ascertained; and, if the taxes which are to be apportioned shall thereafter be reduced by abatement, the amount of such abatement, less the reasonable cost of obtaining the same, shall be apportioned between the parties, provided that neither party shall be obligated to institute or prosecute proceedings for an abatement unless herein agreed. This paragraph survives delivery of the deed.

18. **BROKER(S) FEE** A broker's fee for professional services is due from the SELLER to The Greene Realty Group as per listing Agreement but only if, and when the deed has been accepted and recorded at said Registry of Deeds and the full consideration is received by SELLER pursuant to this Agreement and not otherwise. The Greene Realty Group shall pay the BUYER's broker, Better Homes & Gardens| The Masiello Group, as per agreed upon listing arrangement.
19. **BROKER'S WARRANTY** The Broker(s) named herein warrants that they are duly licensed as such by the Commonwealth of Massachusetts.
20. **DEPOSIT** All deposits made hereunder shall be held, in escrow, by Better Homes and Gardens- The Masiello Group as escrow agent subject to the terms of this Agreement and shall be duly accounted for at the time for performance of this Agreement. In the event of any disagreement between the parties, the escrow agent shall retain all deposits made under this Agreement pending written instructions mutually given by the SELLER and BUYER, or by an order of a court of competent jurisdiction. The delivery, acceptance and recording of the Deed shall in all cases constitute the Parties' joint authorization for the release of all deposits held hereunder.
21. **BUYER'S DEFAULT: DAMAGES** If the BUYER shall fail to fulfill the BUYER'S Agreements herein, all deposits made hereunder by the BUYER shall be retained by the SELLER as liquidated and exclusive damages for any breach of this Agreement by the BUYER. This shall be the SELLER'S sole remedy at law and in equity.
22. **RELEASE BY HUSBAND AND WIFE** The SELLER'S spouse hereby agrees to join in said deed and to release and convey all statutory and other rights and interests in said Premises. The parties understand and acknowledge that even if SELLER's spouse does not hold a record title interest, cooperation may still be required due to homestead rights by statute.
23. **BROKER AS PARTY** The Broker(s) named herein join(s) in this Agreement and become(s) a party hereto, insofar as any provisions of this Agreement expressly apply to the Broker(s), and to any amendments or modifications of such provisions to which the Broker(s) agree(s) in writing.
24. **LIABILITY OF TRUSTEE, SHAREHOLDER, BENEFICIARY, etc.** If the SELLER or BUYER executes this Agreement in a representative or fiduciary capacity, only the principal or the estate represented shall be bound, and neither the SELLER or BUYER so executing, nor any shareholder or beneficiary of any trust, shall be personally liable for any obligation, express or implied, hereunder.
25. **WARRANTIES AND REPRESENTATIONS** The BUYER acknowledges that the BUYER has not been influenced to enter into this transaction nor has he relied upon any warranties or representations not set forth or incorporated in this Agreement or previously made in writing, except for the following additional warranties and representations, if any, made by either the SELLER or the Broker(s): None
25. **MORTGAGE CONTINGENCY CLAUSE** Intentionally Omitted.

26. CONSTRUCTION OF AGREEMENT

This Agreement may be executed by and through electronic signature technology which is in compliance with Massachusetts law governing electronic signatures, and/or executed in multiple counterparts, is to be construed as a Massachusetts contract, is to take effect as a sealed instrument, sets forth the entire contract between the parties, is binding upon and enures to the benefit of the parties hereto and their respective heirs, devisees, executors, administrators, successors and assigns, and may be cancelled, modified or amended only by a written instrument executed by both the SELLER and the BUYER or their respective attorneys. If two or more persons are named herein as BUYER their obligations hereunder shall be joint and several. The captions and marginal notes are used only as matter of convenience and are not to be used in determining the intent of the

27. LEAD PAINT

Intentionally Omitted.

28. SMOKE/CARBON MONOXIDE DETECTOR

Intentionally Omitted.

29. ADDITIONAL PROVISIONS

1. Addendum A is attached hereto and incorporated herein by reference.
2. This transaction is subject to the Buyer confirming if there are zoning restrictions or buffer zones around the powerlines that may effect the ability to build, if this is found to be the case, the Buyer has the right to terminate this contract.
3. This transaction is subject to Buyer confirming if they will need permission from the Utility company or the town for future construction.

FOR RESIDENTIAL PROPERTY CONSTRUCTED PRIOR TO 1978, BUYER MUST ALSO HAVE SIGNED LEAD PAINT "PROPERTY TRANSFER NOTIFICATION CERTIFICATION"

NOTICE: THIS IS A LEGAL DOCUMENT THAT CREATES BINDING OBLIGATIONS. IF NOT UNDERSTOOD, SEEK COMPETENT ADVICE.

SELLER(S):

BUYER(S):

Theriault & Sons Realty Trust

By: _____
Michael Theriault, Trustee

Alexander W. Gonzalez

ADDENDUM A
PURCHASE AND SALE AGREEMENT

SELLER(S): Theriault & Sons Realty Trust
BUYER(S): Alexander W. Gonzalez
PREMISES: 025-44 Mohawk Trail, Florida, MA 01247 ("Premises")

BUYER and SELLER agree to the following terms in addition to those set forth in the printed portion of this Purchase and Sale Agreement ("Agreement"). In the event of any conflict between this Addendum and the printed portion of this Agreement, the provisions of this Addendum shall control.

1. SEVERABILITY: If this Agreement or any other provisions by way of reference incorporated herein shall contain any term or provision which shall be invalid, then the remainder of the Agreement or other instrument by way of reference incorporated herein, as the case may be, shall not be affected thereby and shall remain valid and in full force and effect to the fullest extent permitted by law.
2. REBA: Any matter or practice arising under or relating to this Agreement which is the subject of a title or practice standard of the Real Estate Bar Association of Massachusetts (REBA) shall be governed by such standard to the extent applicable and to the extent such title standard or practice standard does not contradict any expressed term or condition of this Agreement.
3. AUTHORIZATION TO SIGN EXTENSIONS AND NOTICES: In order to facilitate the execution and delivery of certain documents contemplated hereby, each of the undersigned hereby grants to his or her attorney the actual authority to execute and deliver on his or her behalf any amendments and extensions to this Agreement. Signatures obtained electronically shall be sufficient to bind the Parties to same. In order to assure the correct titling and description of the Premises, the Seller authorizes the closing attorney to correct and revise any deed previously executed by the Seller intending to convey the premises to the Buyer. This authority shall survive the delivery of the deed.
4. SELLER DAMAGES: The Parties acknowledge and agree that SELLER has no adequate remedy in the event of BUYER's default under this Agreement because it is impossible to compute exactly the damages which would accrue to SELLER in such event. Therefore, the Parties have taken these facts into account in setting the amount of the deposit hereunder and hereby agree that: (i) the deposit hereunder is the best estimate of such damages which would accrue to SELLER in the event of BUYER's default hereunder, (ii) said deposit represents damages and not a penalty against BUYER, and (iii) the Parties have had the benefit of counsel with regard to the provisions of this Paragraph.
5. ACCESS: From and after the date of this Agreement, SELLER agrees to permit BUYER (and BUYER's designees, if accompanied by BUYER or BUYER's broker) reasonable access, at reasonable times, to the Premises for the purpose of inspecting the Premises, taking measurements and obtaining construction estimates and bids, provided that BUYER shall notify SELLER at least twenty-four (24) hours in advance. All access shall be in the presence of SELLER or SELLER's agent.
6. EXTENSION OF TIME FOR PERFORMANCE: In accordance with Paragraph 10 of the Purchase and Sale Agreement, SELLER may not extend the time for performance beyond the time when the BUYER's mortgage commitment would be adversely affected. Additionally, Paragraph 10 of this Agreement shall be construed to apply to matters affecting title, the physical condition of the Premises and compliance of the Premises with municipal, county, state or federal codes, ordinances, statutes or regulations concerning the Premises and to which the Premises are subject under the terms of this Agreement. Paragraph 10 of this Agreement shall not, however, be construed to excuse SELLER from vacating the Premises at the time set for Closing for reasons such as unavailability of movers, inconvenience or other such delays in performance hereunder.
7. TITLE: Without limitation of any other provisions of this Agreement, said Premises shall not be considered to be in compliance with the provisions of this Agreement with respect to title unless:
 - a. All buildings, structures and improvements, including but not limited to any driveways, garages, cesspools and septic systems and all means of access to the Premises, shall be located completely

within the boundary lines of said Premises and shall not encroach upon or under the property of any other person or entity;

- b. No building, structure or improvement of any kind belonging to any other person or entity shall encroach upon or under said Premises;
 - c. The Premises shall abut or have indefeasible access to a public way, duly laid out or accepted as such by the city or town in which said Premises are located;
 - d. The Premises comply with all applicable zoning, building and subdivision laws, regulations and codes without variance, special permit or nonconforming use exceptions.
 - e. The Premises is insurable by an ALTA title insurance company doing business in the Commonwealth of Massachusetts, with exceptions that are allowed in the secondary market and acceptable to BUYER's Lender. In the event of a title matter for which a title insurance company is willing to issue a so-called "clean" policy or provide "affirmative coverage" over a known defect or problem, BUYER may elect to accept same but shall not be required to do so, and shall have the right, at the option of BUYER and/or BUYER's counsel, to deem title to the Premises unacceptable or unmarketable in which event BUYER shall be entitled to terminate this Agreement and receive a full refund of any deposits made hereunder.
8. SELLER's REPRESENTATIONS: SELLER represents to the best of SELLER's knowledge and agrees with BUYER as follows:
- a. SELLER has the legal right, power and authority to enter into this Agreement and to perform all of its obligations hereunder;
 - b. There are no tenants, occupancies or licenses in or to the Premises;
 - c. SELLER has not commenced nor has SELLER received notice of the commencement of any proceeding which would affect the present zoning classification of the Premises. SELLER will not initiate any such proceedings and will promptly notify BUYER if SELLER receives notice of any such proceeding commenced by third parties;
 - d. There are no suits, actions, orders, decrees, claims, writs, injunctions or proceedings pending or threatened against SELLER or affecting all or any part of the Premises or SELLER's right or power to consummate the transaction contemplated by this Agreement before any court, government authority, or administrative agency or office that will not be removed simultaneously with the delivery of the deed;
 - e. That at the time of the Closing, there will be no agreements or contracts, oral or in writing, involving the Premises which will be binding upon BUYER or affect the Premises in any manner which cannot be unilaterally terminated by BUYER after Closing;
 - f. There is no pending bankruptcy, foreclosure, or other proceeding which might adversely impact the SELLER's ability to perform under this Agreement. In the event that SELLER files for bankruptcy, or if involuntary proceedings are instituted against SELLER, BUYER may, at BUYER's election, terminate this Agreement by written notice to the SELLER whereupon any payments made under this Agreement shall be forthwith refunded to the BUYER and all other obligations of the Parties hereto shall cease and this Agreement shall be void without recourse to the Parties hereto;
 - g. SELLER represents the Premises is not in a Flood Zone.
 - h. Other than reasonable quantities of normal household, yard and garden products, there has been no release of any toxic or hazardous substances (as same is contemplated by MGL Ch 21E) and no such toxic or hazardous substances have been used, released, generated, stored, treated, disposed of, or otherwise deposited, in, on, or from on the Premises during SELLER's ownership
 - i. SELLER has no knowledge that there are any underground oil storage tanks located on the Premises and the SELLER has not removed such tanks or apparatus from the Premises and there

has not been any releases into the soil from any such tanks or apparatus during SELLER's ownership; and

9. MATERIAL CHANGE: SELLER will promptly notify BUYER of any material change in facts of which SELLER becomes aware which arise prior to the Closing which would make any such material representation untrue if such state of facts had existed on the date of execution of this Agreement and which material change of facts would have caused a reasonable person exercising reasonable judgment to decline to execute this Agreement had such changed state of facts been known at the time this Agreement is executed, and unless SELLER shall rectify the cause of such material change by the original or extended time for Closing hereunder, BUYER shall have the option of canceling this Agreement by notifying the SELLER thereof in writing in which event all deposits made by the BUYER hereunder shall be forthwith refunded to BUYER and this Agreement shall be null and void and without recourse to the Parties hereto.
10. DEED/HOMESTEAD: The Deed submitted to BUYER shall be signed by all owners and contain a provision indicating that either the Owners are married, or the Premises is not SELLER's primary residence or SELLER is unmarried, and therefore no other person has any Homestead rights, or in the alternative SELLER's non-owner spouse shall release her/his rights of homestead by executing the Deed or a recordable Release of Homestead.
11. COVENANTS: Prior to closing SELLER hereby agrees to provide the office of Buyer's counsel with a full or partial release, discharge, or certificate of compliance, in recordable form, for any applicable orders of conditions, covenants, or other matters of record.
12. MUNICIPAL BETTERMENTS/SPECIAL ASSESSMENTS: SELLER has received no notice of eminent domain taking, condemnation, betterment or assessment, actual or proposed, with respect to the Premises, and SELLER represents that SELLER has no knowledge of any impending special assessment or municipal betterments affecting the Premises approved, pending, proposed or contemplated by the city/town which is likely to result in an assessment against the Premises. The SELLER shall be responsible to pay for any assessments and/or betterments issued prior to the closing. This applies but is not limited to assessments as to which an installment method of payment was previously elected.
13. PERSONAL PROPERTY: SELLER represents that SELLER has unencumbered ownership of all of the property, fixtures, fittings and equipment located and included in the sale of the Premises. SELLER agrees to transfer the same to BUYER free of any liens, encumbrances or security interests. SELLER and BUYER hereby agree that there is no value given to any of fixtures and/or property (furniture, appliances and/or otherwise) listed in this Agreement and that these items are being left for the BUYER by the SELLER as a courtesy and have no impact on the purchase price of the Premises herein.
14. MAINTAIN: Between the date of the signing of this Agreement and the Closing, SELLER shall maintain and/or service the Premises and its appurtenances at substantially the same level of effort and expense as the SELLER has maintained and/or serviced the Premises for the SELLER's own account prior to the date of this Agreement.
15. ADJUSTMENTS: If any errors or omissions are found to have occurred in any calculations or figures used in the settlement statement signed by the parties (or would have been included if not for any such error or omission) and notice hereof is given within ninety (90) days of the date of delivery of the deed to the party to be charged, then such party agrees promptly to make a payment to correct the error or omission. This shall survive delivery of the deed for 90 days.
16. DEPOSITS: The deposits made hereunder shall be held in escrow, subject to the terms of this Agreement and shall be duly accounted for at the time for performance of this Agreement. The deposits may not be released from escrow without the assent of both BUYER and SELLER or pursuant to a court order specifying the disposition of the deposits. The recording of the deed to the premises shall constitute such assent.
17. PERMITS: SELLER represents that with respect to any work SELLER has caused to be undertaken at, or on, the Premises, such work has been performed with the approval of any unit owner's association or homeowner's association, and pursuant to any and all applicable permit(s), said permit(s) have received

final sign off and closure by the applicable governing entity, and SELLER has no knowledge of any "open" permits.

18. **SELLER COOPERATION:** The SELLER agrees to provide the closing attorney with a formal payoff statement for all mortgages on the Premises and with the SELLER's written consent to terminate the SELLER's right of withdrawal against any line of credit. BUYER'S obligations hereunder are contingent upon the SELLER signing all closing documents required by BUYER's lender and title insurance company as reasonably required including, but not limited to, affidavits indemnifying against claims of workmen and materialmen, affidavits as to the nonexistence of urea formaldehyde foam insulation on the premises, parties in possession, the purchase price and allocation of same. In addition, the parties agree that, at BUYER's option, a Deed executed under Power of Attorney shall not constitute a Deed in compliance with Paragraph 4 of this Agreement.
19. **PREMISES DESTROYED/DAMAGED:** Notwithstanding any provision of this Agreement to the contrary, in the event the Premises are destroyed or substantially damaged by fire or other casualty, defined as any damage in excess of \$5,000.00, during the period of this Agreement, BUYER may, at BUYER's sole option, terminate this Agreement by written notice to SELLER, whereupon all deposits made hereunder shall be forthwith refunded, all obligations of the parties hereto shall cease, and this Agreement shall become null and void without further recourse to the parties hereto.
20. **ELECTRONIC SIGNATURES:** For purposes of this Agreement or other executed documents, facsimile, digital or electronic signatures (such as a scanned TIFF or PDF file) shall be construed as original, except as to the deed and the closing documents, and except as to documents intended to be recorded, provided however that no party shall avoid any obligation hereunder by failing to provide such original signature.
21. **NEXT BUSINESS DAY:** If the scheduled closing date, or the date any notice required pursuant to this Agreement is due, falls on a Saturday, Sunday, State or Federal legal holiday, or governmentally declared State of Emergency, the Closing Date or due date of said Notice, shall be the next business day. The closing attorney shall use its best efforts to record the appropriate closing documentation at the Registry of Deeds on the date of the scheduled closing. The parties understand, however, that depending on the time and location of the closing, the documents may not be recorded until the following business day. If this occurs, Buyer shall not be considered to be in default with the terms of this Agreement.
22. **REPRESENTATION:** BUYER and SELLER authorize the release of the preliminary and fully executed ALTA Settlement Statement and/or SELLER'S CD to the real estate brokers and agents involved in this transaction and their respective offices. BUYER also acknowledges that, in the event, BUYER has engaged the services of Touchstone Closing and Escrow LLC to negotiate the Purchase and Sale Agreement, the scope of services rendered by Touchstone Closing and Escrow LLC, on behalf of the BUYER and/or BUYER's Lender does not include any verification of zoning or suitability of the subject Premises for the use stated herein, and/or any inquiries/review with the Town/City as to required permits for the said Premises. The provisions of this paragraph shall survive the recording of the deed or lawful termination of this Agreement.
23. **LEGAL COUNSEL.** Both BUYER and SELLER hereby acknowledge that they have been offered the opportunity to seek and confer with qualified legal counsel of their choice prior to signing this Agreement.
24. **WIRE TRANSFERS:** SELLER proceeds are to be paid upon delivery and recording of the deed. Payment can be made via Attorney's IOLTA check or wire transfer to an account in SELLER's name(s). SELLER must complete all wire forms and procedures required by Touchstone Closing. A fee of \$175.00, paid by the SELLER, is applicable for authentication of wiring instructions. Seller or Seller's counsel will be required to use our third party wire verification and fully insured service "Certifid" to verify outgoing wire information. If the Seller fails Certifid ID verification or does not utilize Certifid ID process then Touchstone will not initiate the wire to the Seller. Touchstone reserves the right to refuse wiring of funds pursuant to REBA Ethical Standard No. 5. In case a wire transfer is not issued, SELLER will receive an Attorney's IOLTA check.
25. **NOTICES:** Any and all notices which may be given or required hereunder may be either mailed by certified mail, return receipt requested, delivered by-hand, delivered by overnight carrier, electronic mail (E-mail) or facsimile with proof of transmission as follows:

If to BUYER:

Emily Corcoran
Touchstone Closing & Escrow, LLC
27 Main Street Andover, MA 01810
Tel: (978) 475-4896 Fax: (978) 482-0270
ecorcoran@touchstoneclosing.com

If to SELLER:

or to such other address or addresses as may from time to time be designated by either party by written notice to the other

SELLER(S):

BUYER(S):

Theriault & Sons Realty Trust

By: _____
Michael Theriault, Trustee

Alexander W. Gonzalez